Portsmouth Joggers Club Constitution

Version: April 2026

Club Identity and Rules

1) Name and Address

The club shall be called "Portsmouth Joggers Club". The address of the club shall be c/o the secretary.

2) **Aims and Objectives**

The aims and objectives of the club shall be:

a. To provide a medium through which people of all abilities may be introduced to jogging and light exercise as a means of improving their general fitness in an enjoyable atmosphere, regardless of whether they have taken part in any sport before.
b. To enable people to take part in such exercise according to their abilities and requirements and to offer appropriate advice and guidance in providing for these needs.
c. To encourage all members to respect the rights, opinions, dignity and worth of every person and to treat everyone equally, without discrimination in any form.
d. To encourage and support those members who wish to take part in competitive events, across all levels of ability.
e. To endeavour to enter teams in a range of local and national events and club races on both road and cross-country and to fully support those members wishing to take part in such events.
f. To raise money for the purpose of promoting the aims and objectives of the club.
g. To arrange social activities for the club.
h. To be committed to health and safety. To make charitable donations subject to and in accordance with the club's charity policy.

3) **Membership**

a. Membership shall be open to all people over the age of 18. The committee may vary this to accept members under the age of 18 provided the club can meet any legal or health and safety issues relating to young and vulnerable persons.
b. Membership of the club is in accordance with the rules of the appropriate Athletics Association.
c. A candidate for membership must apply in writing on a form provided for the purpose, together with the annual subscription.
d. Honorary / life membership may be granted for significant contribution within the club on the recommendation of the committee. This shall be by a simple majority secret vote of the members at the Annual General Meeting, including validly notified postal votes.

4) Subscription

a. The annual subscription of the club shall be as determined by the Committee and announced in the AGM agenda.
b. The annual subscription once paid shall not be refundable.
c. The provision of facilities for members at the recognised meeting place of the Club may require funding, and the committee shall be empowered to negotiate any fee and that fee shall be included as part of the annual subscription.
d. The onus of renewal of membership will rest with the individual member. A reminder shall be produced and sent by email to members prior to yearly renewals in April. If payment is not received before the renewal date then the member will no longer be a member of the club and will be removed from the chosen Athletics Association database.
e. Members resigning to transfer first claim club must give notice of resignation in writing to the secretary.

5) Club Colours

These will be royal blue vests with a white hoop. Any change of design of the club kit and insignia will be decided at an AGM and registered with the appropriate Athletics Association.

In appropriate circumstances, county, area or national colours can be worn, e.g.; if the athlete is representing that particular body.

6) Affiliation

The Committee shall ensure affiliation to appropriate bodies to enable members to participate in events governed by those bodies.

7) Club Coaches and Group Leaders

There shall be groups on training sessions where there shall be appointed Group Leaders. All club leaders and coaches must have a valid licence (minimum LiRF) and have agreed to the England Athletics Terms and Conditions for the England Athletics Coach Licence Scheme.

8) Club notices

Save as otherwise provided in the constitution all club notices shall be treated as validly given by publication on the club website, save that if for any reason access cannot be obtained to the website or it is not available either on a temporary or permanent basis, when e-mail notice shall then be given.

Club Management Structure

9) **Committee**
   a. The management of the club is vested in a committee consisting of no more than twelve members, who shall be elected at the Annual General Meeting (AGM).
   b. Only members who have Portsmouth Joggers as their first claim club are eligible for election to the committee.
   c. The term of office for members of the committee shall be until the following year's AGM when that term shall end. In the event a member of the committee resigns during their term of office that place shall lapse until the AGM or any Extraordinary General Meeting (EGM) called / triggered for the purpose of electing committee members.

10) Club Officers

The club officers, listed below, shall be elected from the committee at the AGM. The term of office for the club officers shall be until the following year's AGM when their term shall end. In the event that a club officer resigns their office during their term, the committee may elect (by a simple majority) a member of the committee to replace that officer and that person shall be deemed as if elected at the AGM. An officer may resign their office, but remain on the committee, (unless they also resign as a committee member) and may take part in the vote for the replacement. The club officers are:

a. Chairperson
b. Vice-chairperson
c. Secretary
d. Treasurer

11) Welfare Officer

The committee shall seek to appoint a welfare officer or officers.

12) Club Assets

All club assets, broken or otherwise, including any intellectual property rights and / or data acquired by the club shall remain the property of the club and any member who resigns their post shall deliver up to the committee all such assets in their power, custody and control without delay and without taking copies and / or passing to third parties.

Governance

13) Committee Meetings

a. **Frequency** - The committee shall meet as regularly as shall be reasonably necessary to conduct the club's business, but not less than 6 times annually.

b. **Voting** - Each member of the committee shall have one vote, but in the event of a tie, the chairperson shall have the deciding vote. In the event that the chairperson is not in attendance the casting vote shall pass in descending order to the club officers listed in paragraph 5. Decisions made at all meetings shall be by simple majority.

c. **Finance** - The committee has authority to spend club monies as shall be reasonably necessary to conduct the business of the club.

d. **Quorum** - The committee shall form a quorum provided not less than 6 members of the elected committee are in attendance, including at least one club officer. In the event that the committee at any time falls below 6 in number an EGM to elect new committee members shall be automatically triggered in accordance with section 21.

e. **Minutes** - The committee shall produce "committee minutes" of each committee meeting, such minutes to be of sufficient detail to record the substance of all matters discussed and the outcome of each vote taken and those minutes shall be preserved as club records for a minimum of 3 years. A set of "club published" minutes shall be made available to members as soon as reasonable practicable after each committee meeting by one or more of the following methods:
    - Published on the club website.
    - mailed to members, unless any member has elected not to receive club information by e-mail or has not provided the membership secretary with an e-mail address.
    - Paper copy at the Tuesday and Thursday club nights

f. **Privacy** - The committee shall not include in the "club published" minutes any details of complaints / disciplinary matters or other information likely to cause harm or prejudice to a member of the club or the club itself.

g. **Complaints** -The committee shall have power (in accordance with Section 16 - Complaints Procedures) to:
    - Deal with all complaints and disciplinary matters in accordance with the complaints and disciplinary procedures.
    - Of its own volition upon a majority vote in committee bring disciplinary action against members in accordance with the complaints and disciplinary procedures.

h. **Other attendees** - The committee meetings save for any dealing with complaints or disciplinary matters are open to members of the club to attend, upon a request to the secretary made in advance. The committee may invite members to attend. Members may only participate in committee discussions if invited to do so and shall not be eligible to vote. Any members attending may be asked to leave at the sole discretion of the chairperson or the committee member chairing the meeting.

i. **Sub-committees** - The committee may appoint sub-committees to action matters defined and specified by the committee. Any sub-committee's power to act shall be defined and limited to that prescribed by the committee. A member of the committee must chair any sub-committee and shall be answerable and accountable to the club committee. Members of the club may be invited by the committee or chair of the sub-committee to join any sub-committee. The committee shall have the power to dissolve a sub-committee at any time, remove and/or replace the chair and remove and/or replace any member. Each member of the sub-committee shall have the right to vote on the business of the sub-committee, but in the event of a tie the chair of the sub-committee shall have the deciding vote. The chair of the sub-committee shall submit to the committee a note of any meeting summarising the matters arising. The note shall not require approval of the sub-committee.

14) Accounts

The committee shall appoint an auditor for the club accounts and the audited accounts are to be presented at the AGM.

15) Data Protection Act Policy

The club's GDPR policy is held in the PJC Sharepoint repository

16) Charity/Welfare Policy

Subject to the club having sufficient funds to enable it to continue with normal operations and to maintain a balance of funds that the committee considers prudent the club shall be able to make charitable donations.

a. **Races** - Race directors of each club event may nominate a charity or any number of charities, to which surplus monies from their race may be donated. Upon the race director submitting race accounts to the treasurer and the treasurer being satisfied those accounts are true and accurate the club will thereafter, (subject to 6a), issue a payment in favour of that nominated charity or charities for up 50% of the race surplus, subject to a maximum amount of £1000 for any one charity. The exception to this rule is the Pub to Pub race from which up to 100% of the profit can be given to charity. The £1000 maximum limit for any charity does not apply to the Pub to Pub race. The choice of any nominated charity shall be verified by a majority vote of the committee.

b. **Ad hoc donations** - The committee shall have power to make ad hoc charitable donations through the year provided no single payment exceeds £250 and the aggregate for the year £1000 under this paragraph.

c. **Welfare** - The committee may at their discretion make welfare payments and provide gifts and gratuities as they consider reasonable, subject to a maximum of £100 per recipient per annum.

Annual General Meeting (AGM)

17) Frequency

An AGM shall be held annually normally in April in so far as reasonably practicable, to receive the committee's reports and financial statements, elect officers and committee, and deal with any other matters specified on the agenda.

18) Notice of AGM and Agenda

a. The secretary or any other club officer must give not less than twenty eight days' notice of the AGM.
b. All club notices of AGMs shall be given by publishing the notice on the club website. Publication on the club website shall be notice to all members of AGMs.
c. The committee shall, by e-mail, alert members of any AGM notice published on the club website, unless any member has elected not to receive club information by e-mail or has not provided the membership secretary with an e-mail address. The committee may also use further alerts as follows:
    - Posting an alert on social media controlled by the club.
    - Announcing the notice has been published at Tuesday and Thursday club nights.
    - Make available a hardcopy of the notice at the Tuesday and Thursday club nights.
d. Members may request to the committee, no later than the end February immediately preceding that year's AGM, that club notices of AGMs are thereafter delivered to them by post.
e. Members who desire any business to be placed on the AGM agenda must make a request in writing, (hard copy or e-mail) to the secretary not less than 14 days prior to the meeting. The agenda shall state the name of the member next to the item included in the agenda at their request.
f. An agenda for the AGM shall be posted on the club website not less than seven days prior to the AGM and notified to members in the same manner as clause 9c. Only items listed on the agenda may be transacted at the AGM.
g. Only paid up/life/honorary members as at the date of the AGM may attend the AGM unless specifically invited by the committee.
h. All votes by members in attendance at the AGM shall be a simple majority by show of hands, unless otherwise stated within the constitution and the supporting club rules, policies and procedures.

19) Committee / Club Officer Election

a. Candidates for the committee must be both nominated and seconded by paid up members. All completed nominations (that is notice of proposal and seconding) must be received by the secretary not less than fourteen days before the date of the AGM or eight days before an EGM. Nomination and seconding may be by hard-copy or e-mail.
b. Candidates wishing to stand for election as a club officer if elected to the committee must notify the secretary by hard copy or e-mail not less than fourteen days before the date of the AGM or eight days before an EGM.
c. The list of nominated candidates and those also standing to be elected as a club officer shall be published on as part of the AGM / EGM agenda.
d. Only paid-up / Life / Honorary members may vote at the AGM / EGM.
e. Those members unable to attend an AGM/ EGM may apply in writing (including by e-mail) to the secretary for a vote by e-mail or in exceptional circumstances at the discretion of the secretary by telephone, such applications to be received by the secretary not less than fourteen days before the date of the AGM or eight days before an EGM. The secretary or any member of the committee will thereupon e-mail or telephone the candidate list to the member making the request and the vote must be received no later than one day before the AGM/ EGM and then shall be passed to the returning officers.
f. In the event of there being more nominations than places on the committee, then voting by members at the AGM shall be necessary. In the event of there being the same or fewer nominations than places on the committee, no vote shall be necessary, this being at the discretion of the members present at the AGM by a simple majority vote.
g. The vote for committee membership and club officers shall be by secret ballot. The committee vote shall take place first followed by a second vote for the club officers from those successfully elected to the committee. The votes shall both be simple majority on a first past the post basis. In the event of a tie a second vote will be taken.
h. The existing committee shall appoint two returning officers to conduct the vote. The returning officers may

not be members of the committee, candidates for the new committee, or proposer/ seconders or candidates for the new committee.

i. The term of office for serving committee members shall automatically come to an end immediately before the vote for members of the new committee for the forthcoming year.
j. In the event a member successfully standing for election to the committee is also standing for election as a club officer, and no other candidate is standing for that post, that member shall be duly elected, this being at the discretion of the members present at the AGM by a simple majority vote. In the event two elected members are standing for the same club officer position there shall be a further secret ballot.
k. There shall be no limit on the number of terms that a member may serve on the committee / as a club officer.

EGM (Extra-ordinary General Meeting)

20) Member / committee requested EGM

a. The committee may upon a simple majority, vote to convene an EGM at any time and the committee minutes must record the motion(s) to be discussed and voted upon.
b. The committee shall convene an EGM upon the receipt of a written request by a paid-up member and supported by no fewer than ten further paid-up members. The member request must include the motion to be discussed and voted upon. The member request and members support for request may by hard copy or e-mail.
c. The committee, by the secretary or any other club officer, whether calling the EGM under 10A a) or b) shall give not less than fourteen days' notice of the EGM (save in the case of a motion to dissolve the club in which case twenty eight days' notice shall be required), such notice to include the name of the member requesting the EGM, the motion(s) to be discussed and voted upon. No other business shall be transacted.
d. All club notices of EGMs shall be given by publishing the notice on the club website. No postal notice shall be or may be required or given for an EGM save in the case of a motion to dissolve the club in which case postal notice shall be given to all members in addition to the normal notice provisions.
e. The committee shall also alert members of its publication by e-mail, unless any member has elected not to receive club information by e-mail or has not provided the membership secretary with an e-mail address. The committee may also use further alerts as follows:
    i. Posting an alert on social media controlled by the club.
    ii. Announcing the notice has been published at Tuesday and Thursday club nights.
    iii. Make available a hardcopy of the notice at the Tuesday and Thursday club nights.
f. Only paid up/life/honorary members as of date of EGM may attend the EGM unless specifically invited by the Committee.

21) Automatic EGM

The minimum number of members required to form a committee shall be 6**.** In the event that the committee at any time falls below 6 an EGM to elect new committee members shall be automatically triggered to achieve or surpass the minimum number of members, up to a maximum of 12.

At any time that the committee falls below 6 in number, the remaining committee shall, not later than five working days thereafter, call an automatic EGM, giving not less than 14 days' notice of the meeting by publishing a notice on the club website.

The committee shall also alert members of its publication by e-mail, unless any member has elected not to receive club information by e-mail or has not provided the membership secretary with an e-mail address. The committee may also use further alerts as follows:

i. Posting an alert on social media controlled by the club.
ii. Announcing the notice has been published at Tuesday and Thursday club nights.
iii. Make available a hardcopy of the notice at the Tuesday and Thursday club nights.

Only paid up/life/honorary members as at twenty eight days prior to the automatic EGM (and at the date of such an EGM) may attend the EGM unless specifically invited by the committee.

22) Complaints Procedure

Note: All complaints and disciplinary matters shall remain confidential Committee business and the Complaints and Disciplinary procedures will only apply to internal problems within the Portsmouth Joggers Club; if the nature of the problem is outside the scope of the committee and is of a private nature then the committee will not deal with it.

a. In the first instance the complainant should speak to a committee member or one of the club's welfare officers regarding the complaint. The committee will make an assessment which they will discuss and seek to agree the best way to proceed. It would be hoped that a resolution is found at this time.
b. If the complaint cannot be resolved under 16a then a letter of complaint would need to be forwarded to the club secretary setting out the full details of the complaint, the welfare officer's assessment, if contacted by the complainant, and a summary of the steps taken to try and resolve the complaint.
c. The matter will then be discussed at the next committee meeting and the committee will then issue a provisional view of how the matter should be resolved. The complainant will be invited to agree that provisional view within fourteen days and in the absence of further notice from the matter shall be treated as closed and may not be reopened.
d. The complainant may within 14 days of the provisional view of the committee request a formal meeting with the Committee to discuss what further steps are to be taken. The committee will then state what further steps are to be taken and that shall be binding. Should such a complaint affect another member then further steps may include seeking information from that member and or members who are subject to the complaint and the committee shall be entitled to set out to that member(s) sufficient information from the Complainant in order that the members(s) the complainant is complaining about may fully understand the nature of the complaint.
e. Upon concluding any further steps the committee shall then convene a meeting and invite the complainant. If the nature of the complaint involves another member(s) both will be given fair opportunity to discuss their differences and explore a resolution. If the members cannot reach a resolution the committee will then within 21 days provide a written determination of the dispute with a summary of the reasons and action to be taken. Action may include expulsion from the club of one or more members. The committee decision is final.
f. The complainant shall be entitled to bring a companion to any meetings with the committee.

23) Disciplinary Procedure

a. In the event of a serious complaint against a member of the club or of the committee deciding by a simple vote that it is appropriate to take disciplinary action against a member, that member will be invited by letter to a meeting with the committee to discuss the matter concerned. That letter shall set out in detail the nature of the complaint / issues in sufficient detail for the member to understand the nature and details of the complaint / issues.
b. The matter will then be discussed at the next committee meeting and the committee shall then issue a provisional view of how the matter should be resolved. The complainant will be invited to agree that provisional view within 14 days and in the absence of further notice from the complainant the matter shall be treated as closed and may not be reopened.
c. The complainant may within 14 days of the provisional view of the committee request a further meeting with the committee to discuss what further steps are to be taken. The committee shall then state what further steps are to be taken and that will be binding. The further steps may include seeking information from another member(s) and the committee shall be entitled to set out to that member(s) sufficient information in order that the member(s) may fully understand the nature of the issues and to then provide such further information as may be appropriate.
d. Upon concluding any further steps the committee shall then convene a meeting and invite the complainant and other relevant members to attend. All parties will be given fair opportunity to discuss the issues. The committee may then adjourn the meeting and then within 21 days provide a written determination of the disciplinary matter with a summary of the reasons and action to be taken. Action may include immediate expulsion from the club. The committee decision is final.
e. Reasons for expulsion can be (but not all inclusive):
    - Bringing the club into disrepute.
    - Intimidation, assaulting or harassment of another club member.
    - Breach of Health and Safety.
    - Acting contrary to the interests of the club.
    - Misappropriating club funds and or property.

- Breach of the data protection policy.

f. A member shall be entitled to bring a companion to any meetings with the committee

24) Miscellaneous

No alterations to the constitution or rules shall be made except at an AGM or an EGM.

Dissolution

If the committee does at any time recommend that the Portsmouth Joggers Club shall be dissolved, an EGM of the club shall be convened to consider the recommendation. If the recommendation is endorsed by way of a 75% or greater majority vote of paid-up members, the club shall be dissolved.

The remaining net assets to the credit of the club shall be donated to up to three registered charities. Members may not less than 7 days prior to the EGM nominate to the committee charities to receive the remaining assets of the club.

Members in attendance at the EGM shall have one vote from the list of duly nominated charities and the three charities receiving the highest number of votes shall receive an equal distribution. In the event of a tie, a further vote shall be held to determine the tie. Should three or fewer charities be nominated, no vote shall be required and the net distribution shall be to that single charity or if two or three charities split between them equally.